

Defendant timely served the Motion on Plaintiff, and the Motion is unopposed.

Background

Plaintiff filed a proof of service on 6/2/25, of which the court takes judicial notice, reflecting that a process server completed personal service on 5/31/25. The person who was served identified herself as Shaun A. Avant, and the service took place at the same address the Defendant used on this Motion. The server described the individual as a black male, middle aged and of medium height and weight. The service was done by a registered process server, which raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Defendant, in his declaration claims he was never actually served with process, though he was home at the time of the purported service. He also cites a discrepancy between his actual appearance and the description offered by the server.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process; as well as Section 473(b) of the CCP, which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect.

When service is done by a registered process server, there is a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

In the instant matter, the court does not have enough information, from the written submissions alone, to render a decision. Thus, the court will require an evidentiary hearing.

Disposition

Parties to appear in court for evidentiary hearing on the issue of service of process.

7. 9:00 AM CASE NUMBER: L25-05839

CASE NAME: MARINER FINANCE, LLC VS. LORETTA ROBERTSON

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO BE RELIEVED AS COUNSEL**

FILED BY: ROBERTSON, LORETTA R

TENTATIVE RULING:

Background

Counsel for Defendant has filed a Motion to be relieved as counsel, citing an inability of the client to pay counsel, as well as a breakdown in communication.

The Motion was served on Defendant as well as the Plaintiff.

The Motion is unopposed.

No trial date has been set.

Disposition

Motion to be relieved is granted.

Counsel for Defendant to file order.

8. 9:00 AM CASE NUMBER: L25-09990

CASE NAME: WELLS FARGO BANK, N.A. VS. NICHOLAS DELUCA

***HEARING ON MOTION FOR DISCOVERY FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED
FILED BY: WELLS FARGO BANK, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit One - Request For Admissions Propounded On Defendant, Set One, ("Admissions") - to their Declaration.

Plaintiff attached a proof of service, indicating email service to Defendant's mailing address of record.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Admissions at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.